

TENTATIVE RULING

Case: **Juchau v. Roth**
 Case No. CV2023-0225

Hearing Date: **March 12, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Todd Juchau's motion for leave to file an amended complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 473, 576.) Plaintiff does not state what allegations are proposed to be added and/or deleted and where, by paragraph and line number. (Cal. Rules of Court, rule 3.1324(a)(2)-(3); see Perez-Pruitt decl., ¶ 4, Exhibit 3.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Mallari v. Fowler**
 Case No. CV2024-2282

Hearing Date: **March 12, 2026** **Department Fourteen** **9:00 a.m.**

Motion to withdraw deemed admissions:

Plaintiff Jerilyn Mallari's motion to withdraw deemed admissions is **DENIED**. (Code Civ. Proc., § 2033.300.) Plaintiff fails to show that her failure to respond to defendant Taylor Fowler's request for admissions of fact was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.300, subd. (b); see *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; *Stover v. Bruntz* (2016) 12 Cal.App.5th 19, 31; Mallari Decl., ¶¶ 2, 3.)

The notice of motion provides notice of this Court's tentative ruling system; however, the notice does not contain the requisite language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for summary judgment:

Defendant Taylor Fowler's request for judicial notice is **GRANTED** (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's motion for summary judgment, or in the alternative, summary adjudication on complaint of plaintiff Jerilyn Mallari is **DENIED**. (Code Civ. Proc., § 437c.) Defendant failed to file a memorandum of points and authorities in support of the motion with the Court as required. (Cal. Rules of Court, rule 3.1350(c)(3).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.